Notice of Confidentiality Rights: If you are a natural person, you may remove or strike any of the following information from this instrument before it is filed for record in the public records: Your social security number or your driver's license number

PAID-UP OIL AND GAS LEASE

This Paid-Up Oil and Gas Lease (this "Lease") is made on February 18, 2025, between **Merrill Matthews, Jr.**, (hereinafter called "Lessor") whose address is 701 Waverly Ln, Coppell, TX 75019 (whether one or more), and **Long Wave Energy, LLC** (hereinafter called "Lessee"), whose address is 3880 Hulen Street, Suite 500, Fort Worth, Texas 76107.

1. In consideration of Ten and No/100 Dollars ($10.00) and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Lessor leases exclusively unto Lessee the land described below (the "Land") for the purpose of investigating, exploring, drilling, operating for, and producing oil, gas and all other minerals, together with all rights, privileges and easements (including, for purposes of clarity, rights of ingress over, under and through the Land) which are necessary, useful or convenient in connection with the foregoing and/or in connection with injecting gas, waters, other fluids or materials, and air into subsurface strata for any purpose, laying pipelines, storing oil and/or gas, building tanks, roads, power and communication lines and other structures, facilities and improvements of any kind or character thereon, to produce, save, treat, process, gather, store, and/or transport oil, gas, other minerals and/or other products. The Land is located in Harrison County, Texas, and described as follows:

See Exhibit A attached hereto for the description of the Land

LIMITED as to all depths below the stratigraphic equivalent of the base of the Cotton Valley formation

This Lease also covers all land owned or claimed by Lessor adjacent or contiguous to the Land, whether or not included within the above description, and (a) owned or claimed by Lessor, whether by limitation, possession, reversion, unrecorded instrument or otherwise, or (b) as to which Lessor has a preferential right of acquisition. For the purpose of determining the amount of any shut-in royalties hereunder, the number of gross acres above specified shall be deemed correct, whether actually more or less. Lessor agrees to execute any supplemental instrument requested by Lessee for a more complete or accurate description of the Land.

2. Subject to paragraph 16 hereof, this "paid-up" lease, requiring no rentals, is for a term of three (3) years from the date of this Lease (the "Primary Term") and as long thereafter as oil or gas is produced in paying quantities from the Land or land pooled therewith, or this Lease is otherwise maintained in effect pursuant to the provisions hereof.

3. Lessee covenants and agrees:

(a) To pay to Lessor **22.5%** (the "Royalty Fraction") of all oil or other liquid hydrocarbons produced and saved from the Land, to be delivered to Lessor at the wells or to the credit of Lessor at the pipeline to which the wells may be connected.

(b) For gas, casinghead gas, distillate, condensate and other liquid and gaseous hydrocarbons produced from the Land and sold or used off the Land, to pay to Lessor the Royalty Fraction of the market value, computed at the well, of such gas, casinghead gas, distillate, condensate and other liquid and gaseous hydrocarbons so sold or used; provided, however, that on such gas sold at the wells, Lessee shall pay to Lessor the Royalty Fraction of the net sales proceeds actually received by Lessee from the sale of such gas, casinghead gas, distillate, condensate and other gaseous hydrocarbons produced from the Land.

(c) Lessee must disburse or cause to be disbursed to Lessor its royalty on production from any well producing oil, gas or related hydrocarbons not later than six months after the first day of the month following the date of first sale and thereafter not later than (i) sixty (60) days after the end of the calendar month within which payment is received by Lessee for oil production, and (ii) ninety (90) days after the end of the calendar month within which payment is received by Lessee for gas production.

4. If, at any time after the Primary Term, there is a well capable of producing gas in paying quantities located upon the Land or on lands pooled therewith but such well is awaiting pipeline connection or is shut-in for any other reason (whether before or after

production) and this Lease is not maintained in force by operations or production at any well or by other activity or event, nevertheless it shall be considered that gas is being produced in paying quantities within the meaning of this Lease (all such wells collectively referred to as the "Shut-in Well"). On or before the end of the initial year during which this Lease is maintained in force for the entire annual period under this paragraph, if the Shut-in Well has been shut-in for at least 90 cumulative days during such period, Lessee shall pay or tender to Lessor hereunder, or to those entitled to the royalties provided for in this Lease, a shut-in royalty equal to TEN DOLLAR ($10.00) per acre then held under this Lease at the time such payment or tender is made. Each subsequent payment or tender shall be made thereafter in like manner and amount on or before the end of each annual period while the Lease is maintained in force for the entire annual period under the first sentence of this paragraph. Lessee's failure to timely or correctly pay or tender the shut-in royalty for any year shall not operate to terminate this Lease or serve as a basis for its cancellation, but Lessee shall correct any erroneous payment or tender, when notified thereof, and if late then Lessee shall make the correcting payment or tender with interest at the rate of ten (10%) percent per annum to those to whom such shut-in royalty was not timely or correctly paid or tendered. As long as any well is shut-in, it shall be considered for the purposes of maintaining this Lease in force that oil and/or gas is being produced in paying quantities and this Lease shall continue in effect both before and after the Primary Term. Notwithstanding anything to the contrary contained in this Lease, at the option of Lessee, which may be exercised by Lessee giving notice to Lessor, a well which has been drilled and Lessee intends to frac shall be deemed a well capable of producing in paying quantities and the date such well is shut-in shall be when the drilling operations are completed.

5. Lessee is hereby granted the right, at its option, to pool all or any part of the Land with any other lease or leases, lands, mineral estates, or any of them whether owned by Lessee or others, so as to create one or more drilling or production units. Each such drilling or production unit shall not exceed 640 acres, plus an acreage tolerance of 10%, or such larger unit as may be prescribed or permitted by federal, state, or local law or regulation. Each such drilling or production unit shall conform to the rules and regulations of the Texas Railroad Commission, or any governmental authority having jurisdiction over the Land. In the event of the pooling of the whole or any part of the Land, Lessee shall before or after the completion of the well, record a copy of its unit designation in the County where the Land is located. Lessee may, at any time and from time to time, before or after commencement of production, amend, re-form, reduce, or enlarge the size and shape of any unit formed, and increase or decrease that portion of the acreage covered by this Lease which is included in any drilling or production unit; provided, that Lessee shall file an appropriate instrument of record in the County records where the Land is located. As to each drilling or production unit designated by Lessee, Lessor agrees to accept and shall receive out of the production or the proceeds from the production from such unit, such proportion of the royalties specified herein, as the number of acres out of the Land which may be included from time to time in any such unit bears to the total number of acres included in such unit. Operations on any portion of the unit created under the terms of this paragraph shall have the same effect upon the terms of this Lease as if operations or production are being conducted or occurring on the Land. Lessor agrees to fully cooperate with Lessee's efforts to drill one or more wells, establish one or more units, or undertake other activities permitted by this Lease, including Lessee's applications and compliance with federal, state, and local regulatory authorities, such as the Texas Railroad Commission, and other governmental offices and agencies.

6. This Lease and all of its conditions, covenants, and terms shall extend to and bind the successors and assigns of Lessor and Lessee. The rights of either party may be assigned in whole or in part, and the provisions of this Lease shall extend to and be binding on their respective heirs, successors, personal representatives, and assigns. Upon assignment by Lessee, Lessee shall be relieved of any obligation, payment or liability thereafter to accrue to the assigned portion of the Lease. No change of ownership of the Land or the right to receive any payments or notices under this Lease shall be binding on Lessee until 30 days after Lessee has been provided with satisfactory written evidence of such change of ownership or the right to receive payments or notices.

7. Lessee may, at any time, release this Lease, or any part thereof, and be relieved of any and all unaccrued obligations, payments, and liabilities, by either mailing a notice to Lessor of such release, or by recording such as release.

8. Should production of oil or gas in paying quantities be obtained while this Lease is in full force and effect and should thereafter cease from any cause after the expiration of the Primary Term, this Lease shall not terminate if Lessee commences operations intended to restore production within ninety (90) days after the cessation of such production and shall remain in full force and effect so long as operations are prosecuted in good faith and with no cessation of more than ninety (90) cumulative days, and if such operations result in the production of oil or gas in paying quantities, so long thereafter as oil or gas is produced in paying quantities from the Land or land pooled therewith.

9. All payments under this Lease shall be made by check or voucher to the order of, and shall be mailed **TO LESSOR AT ABOVE ADDRESS,** or its successors, unless and until Lessee shall have received written notice from Lessor of a different address or payment instructions. If nothing is inserted in the preceding blanks, Lessee may mail all payments to Lessor at the address maintained in Lessee's records for Lessor. All payments or royalty are to be made according to Lessor's interest, and this Lease shall not be forfeited for Lessee's failure to pay any royalties or other payments. This Lease shall never be subject to a civil action due to Lessee's alleged failure to perform as specified or implied under this Lease unless Lessee has received written notice of Lessor's demand and thereafter fails or refuses to satisfy Lessor's demand within ninety (90) days from the actual receipt of such notice. If Lessor owns less than the entire undivided interest in the oil, gas and minerals in and under the Land, then the royalties,

including shut-in royalties, and other payments herein provided for shall be paid to Lessor only in the proportion which his interest bears to the whole and undivided interest in the Land.

10. If, at the expiration of the Primary Term, oil or gas is not being produced from the Land or acreage pooled therewith, but Lessee has commenced operations for the drilling of a well that traverses the Land or land pooled therewith, this Lease will not terminate but will remain in effect so long thereafter as operations are carried out with due diligence with no cessation of more than 90 days, and if the operations result in the production of oil or gas, the Lease shall remain in force as otherwise provided herein. Whenever used in this Lease, the term "operations" shall mean: preparing a drillsite location or access road, drilling, testing, reworking, recompleting, deepening, sidetracking, plugging back, or repairing of a well in search for, or in an endeavor to maintain, re- establish, or enhance the production of oil or gas or both, whether or not in paying quantities but for no longer than 180 days past expiration date unless production is established.

11. If drilling or other operations hereunder are delayed or interrupted by lack of water, labor, or material, or by fire, storm, flood, weather, war, rebellion, insurrection, riot, strike, pandemic, differences with workmen, failure of subcontractors, or failure of carriers to transport or furnish facilities for transportation, or as a result of some order, rule, regulation, requisition or necessity of the government, or any other recognized force majeure, or as the result of any other cause whatsoever beyond the control of Lessee, the time of such delay or interruption shall not be counted against Lessee, anything in this Lease to the contrary notwithstanding. All express or implied covenants of this Lease shall be subject to all Federal, State, and Local Laws, Executive Orders, Rules or Regulations and this Lease shall not be terminated, in whole or in part, nor Lessee held liable in damages for failure to comply therewith, if compliance is prevented by, or if such failure is the result of, any such Law, Order, Ordinance, Rule, or Regulation.

12. Lessor hereby warrants and agrees to defend title to the Land, and agrees that Lessor's rights and interests hereunder shall be charged primarily with any mortgages, taxes or other liens, or interest and other charges on the Land, but Lessor agrees that Lessee shall have the right at any time to pay or reduce same for Lessor, either before or after maturity, and be subrogated to the rights of the holder thereof and to deduct amounts so paid from royalties or other payments payable or which may become payable to Lessor under this Lease. In the event a judicial claim is asserted against Lessor's title to the Land, Lessee shall have the right to deposit royalties into the registry of the applicable court as to those royalties that are associated with or attributable to such judicial claim.

13. It is agreed that Lessee shall have the privilege of using, free of charge, sufficient water, oil, and gas from the Land in connection with Lessee's operations, including that which is necessary to run all equipment and machinery for operations thereon. Lessee shall have the right at any time during the term of this Lease or after the expiration or termination thereof to remove all machinery, fixtures, pipelines, meters, well equipment, houses, buildings, and other structures which Lessee has placed or caused to be placed on the Land, including the right to pull and remove all casing and tubing.

14. All notices will be deemed given and reports and documents will be deemed delivered if sent by certified letter, return receipt requested, properly addressed and deposited in the United States Postal Service, postage prepaid, to Lessor and Lessee at the addresses shown for each party. Any party may designate a new address by proper notice to the other party or parties.

15. If any provision of this Lease is held invalid or unenforceable by any court of competent jurisdiction, the other provisions of this Lease will remain in full force and effect. In the event any provision of this Lease is held invalid or unenforceable, the Court making such finding may, upon request by Lessee, revise such invalid or unenforceable provision such that it becomes valid and enforceable.

16. For the above consideration, Lessee is granted the option to extend the Primary Term for an additional two years. Lessee may exercise this option by paying or tendering to the Lessor or Lessor's credit, the sum equal to the number of net mineral acres covered by this Lease multiplied by the original bonus amount per net mineral acre paid as consideration for this Lease on or before the expiration of the Primary Term, which payment, when made, shall constitute the entire payment due for the extended Primary Term. If this option is exercised, any event, action, or other matter required or permitted to be done or occur by the end of the Primary Term shall be required or permitted to be done or occur by the end of the extended Primary Term. For avoidance of doubt, the foregoing consideration is not required in connection with any extension of the Lease term beyond the Primary Term as a result of oil or gas being produced in paying quantities from the Land or land pooled therewith.

17. It is agreed that a Memorandum of Oil and Gas Lease will be filed of record for the purpose of providing record notice of the existence of this Lease in lieu of recording the executed original. Said Memorandum of Oil and Gas Lease shall be recorded by Lessee in the Official Public Records of Harrison County, Texas, within a reasonable period of time after the date hereof and, upon receipt of written request therefor, Lessee shall provide Lessor with a copy thereof reflecting such recordation.

18. Upon the expiration of this Lease (or any part thereof), Lessee agrees to promptly execute and deliver to Lessor, or file for record in the public land records office of the county and state in which the Land lies, a written release and surrender of this Lease, save and except that portion maintained by the provisions herein.

[Signature page follows]

Executed on the date first written above.

LESSOR: **Merrill Matthews, Jr.**

STATE OF TEXAS

COUNTY OF Dallas

This instrument was acknowledged before me on Feb 20th 2025 by Merrill Matthews, Jr.

Notary Public, State of Texas

JEANETTE RODRIGUEZ
Notary Public
STATE OF TEXAS
My Comm. Exp. 09-23-26
Notary ID # 13171309-2

EXHIBIT A

TO

PAID-UP OIL AND GAS LEASE

This lease covers the following described land located in Harrison County, Texas, more particularly described as the following tracts of land:

61.205 acres, more or less, a part of the **Richard Hooper Survey, A-304**, Harrison County, Texas, being all that same land described in that certain Special Warranty Deed, dated February 9, 1996, from Nations Bank of Texas, N.A., as Trustee under the Testamentary Trust created in the LW&T of Fred Erisman, deceased & Dr. Fred Raymond Erisman, III, Emily Kay Erisman Felsenthal Myers, Individually and as Co-Trustees and Nations Bank of Texas, N.A., as Co-Trustee under the Testamentary Trust created in the LW&T of Dorothy Barnhart Erisman, deceased, to Thomas M. Dean and wife, Susan L. Dean, recorded in **Volume 1485, Page 90** of the Deed Records of Harrison County, Texas.

61.270 acres, more or less, a part of the **Richard Hooper Survey, A-304**, Harrison County, Texas, being all that same land described in that certain Warranty Deed, dated May 17, 2002, from Elick N. Maledon joined pro forma by his wife, Sally Bodenheim Maledon, to Jeff Reich and wife, Peggy Reich, recorded in **Volume 2425, Page 128**, Official Records of said County.

LIMITED as to all depths below the stratigraphic equivalent of the base of the Cotton Valley formation

Notice of Confidentiality Rights: If you are a natural person, you may remove or strike any of the following information from this instrument before it is filed for record in the public records: Your social security number or your driver's license number

MEMORANDUM OF OIL AND GAS LEASE

STATE OF TEXAS §
§
COUNTY OF HARRISON §

This Memorandum of Oil and Gas Lease (this "Memorandum") is made on February 18, 2025, between **Merrill Matthews, Jr.**, hereinafter called "Lessor" whose address is 701 Waverly Ln., Coppell, TX 75019 (whether one or more), and **Long Wave Energy, LLC** (hereinafter called "Lessee"), whose address is 3880 Hulen Street, Suite 500, Fort Worth, Texas 76107.

Lessor, for valuable consideration, and in consideration of the covenants of the Lessee set forth in that certain Paid-Up Oil and Gas Lease dated February 18, 2025, from Lessor to Lessee (the "Lease"), has leased unto Lessee the land described below (the "Land") for the purpose of investigating, exploring, drilling, operating for, and producing oil, gas and all other minerals, together with all rights, privileges and easements (including, for purposes of clarity, rights of ingress over, under and through the Land) which are necessary, useful or convenient in connection with the foregoing and/or in connection with injecting gas, waters, other fluids or materials, and air into subsurface strata for any purpose, laying pipelines, storing oil and/or gas, building tanks, roads, power and communication lines and other structures, facilities and improvements of any kind or character thereon, to produce, save, treat, process, gather, store, and/or transport oil, gas, other minerals and/or other products. The Land is located in Harrison County, Texas, and is described as follows:

61.205 acres, more or less, a part of the **Richard Hooper Survey, A-304**, Harrison County, Texas, being all that same land described in that certain Special Warranty Deed, dated February 9, 1996, from Nations Bank of Texas, N.A., as Trustee under the Testamentary Trust created in the LW&T of Fred Erisman, deceased & Dr. Fred Raymond Erisman, III, Emily Kay Erisman Felsenthal Myers, Individually and as Co-Trustees and Nations Bank of Texas, N.A., as Co-Trustee under the Testamentary Trust created in the LW&T of Dorothy Barnhart Erisman, deceased, to Thomas M. Dean and wife, Susan L. Dean, recorded in **Volume 1485, Page 90** of the Deed Records of Harrison County, Texas.

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LIMITED as to all depths below the stratigraphic equivalent of the base of the Cotton Valley formation

The primary term of the Lease is for three years, and the Lease may thereafter be continued in effect as to all or parts of the Land as provided therein. Furthermore, Lessee shall have the option to extend the primary term of the Lease for an additional two years by submitting payment to Lessee, as provided in the Lease. The Lease contains various terms, conditions and provisions, all of which have been agreed to by Lessor and Lessee, as set forth in the Lease.

This Memorandum may be filed of record to give notice of the Lease between Lessee and Lessor, and may be executed in multiple counterparts, each of which shall constitute an original. This Memorandum shall not amend, alter, or otherwise affect the terms, provisions and conditions of the Lease.

Executed copies of the Lease are in possession of Lessor and Lessee and the terms are incorporated herein and made a part hereof as though fully set forth herein.

(remainder of page intentionally left blank)

Executed on the date first written above.

LESSOR: **Merrill Matthews, Jr.**

STATE OF TEXAS

COUNTY OF Dallas

This instrument was acknowledged before me on Feb 20th, 2025, by Merrill Matthews, Jr.

Notary Public, State of Texas

JEANETTE RODRIGUEZ
Notary Public
STATE OF TEXAS
My Comm. Exp. 09-23-26
Notary ID # 13171309-2